SUPREME COURT OF INDIA

APPELLATE JURISDICTION · THREE-JUDGE BENCH

Criminal Appeal No. 1267 of 2004 **CNR: SCIN010012672004**

Date of Pronouncement: 05 May, 2010 *Citation: (2010) 7 SCC 263*

CORAM: Hon'ble K.G. Balakrishnan, C.J., R.V. Raveendran, J.M. Panchal, JJ.

Petitioner / Appellant: Selvi & Others

- VERSUS -

Respondent / State: State of Karnataka

SUBJECT: CRIMINAL PROCEDURE & CONSTITUTIONAL RIGHTS **AUTHORITY: Good Law (Binding 3-Judge Precedent)**

JUDICIAL RATIO DECIDENDI & OPERATIVE PRINCIPLES:

Involuntary administration of narco-analysis, polygraph test, or Brain Electrical Activation Profile (BEASP) violates the right against self-incrimination under Article 20(3) and procedural due process under Article 21.

STATUTORY PROVISIONS INTERPRETED: Article 20(3), Article 21, Section 161(2) CrPC, Section 27 Evidence Act

FINAL DISPOSITION: INVOLUNTARY NEURO-SCIENTIFIC INVESTIGATIVE TESTS BARRED

EXECUTIVE SUMMARY:

Three-judge bench held that involuntary administration of narco-analysis, lie-detector polygraph tests, and brain-mapping BEASP violates Article 20(3) (right against self-incrimination) and Article 21 personal privacy.

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